

Court No. - 38

Case :- WRIT - C No. - 38427 of 2008

Petitioner :- Krishan Kumar

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Ram Kishor Gupta, Dinesh Kumar Gupta

Counsel for Respondent :- C.S.C., Shri Rajesh Tripathi

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Rajiv Gupta, J.

List in the next cause list showing the name of Sri Baleshwar Chatruvedi, as counsel for the respondent.

Order Date :- 10.9.2018

A. Pt. Singh

(Rajiv Gupta, J.) (Abhinava Upadhyaya, J.)

Court No. - 38

Case :- WRIT - C No. - 38427 of 2008

Petitioner :- Krishan Kumar

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Ram Kishor Gupta, Dinesh Kumar Gupta

Counsel for Respondent :- C.S.C., Shri Rajesh Tripathi

Hon'ble Abhinava Upadhya, J.

Hon'ble Rajiv Gupta, J.

Heard Sri Ram Kishor Gupta, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 and 3 and learned Standing Counsel for the State-respondents.

Pleadings have been exchanged between the parties.

By means of this writ petition, the petitioner has challenged the order dated 26.4.2008, which is an order deciding the objection of the petitioner against the order of provisional assessment with the allegation of electricity theft.

The petitioner had filed a writ petition being Civil Misc. Writ Petition no. 18316 of 2008 and the Division Bench of this Court vide order dated 8.4.2008 disposed of the writ petition directing the authorities to decide the objection/representation of the petitioner.

Learned counsel for the petitioner submits that whenever the Court directs the authority to decide the objection, it is to be presumed that the authority will then act in accordance with law. It is also submitted that objection has illegally and cursorily been decided without giving any opportunity of hearing to the petitioner, which is a mandatory requirement before passing any order of final assessment or during the course of provisional assessment. Under paragraph 6.8 C of the Electricity Supply Code, 2005 date of hearing has to be fixed, which has not been done in the instant case.

Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department submits that the impugned

order is pursuant to a direction of this Court, where it had been directed to decide the objection of the petitioner. The objection had been considered by the authority and had been rejected.

We have considered the submissions of the learned counsel for the petitioner and learned counsel for the respondents.

We are in agreement with the arguments raised by the learned counsel for the petitioner that whenever, this Court directs the authority to decide the representation, it is presumed that the authority will act in accordance with law. Paragraph 6.8 C of the Electricity Supply Code, 2005 clearly mandates that the date has to be fixed but from the impugned order it is not clear that any opportunity of hearing was given to the petitioner. Since the impugned order violates the principles of natural justice, therefore, the same cannot be sustained and it is hereby quashed with the liberty to the authority to pass a fresh order after giving opportunity of personal hearing to the petitioner.

To the aforesaid extent, the writ petition stands allowed.

Order Date :- 24.9.2018

A. Pt. Singh

(Rajiv Gupta, J.) (Abhinava Upadhyay, J.)